

BEFORE THE NOTARY PUBLIC AT KOLKATA

LEAVE & LISENCE AGREEMENT

This agreement of Leave & License is executed at KOLKATA Today and will effect from 1ST day of DECEMBER,2025.

Between

MR.AJIT KUMAR PATEL, (Aadhar No.8324 6671 1645), S/O- Shree Pankaj Kumar Patel, by faith Hindu, by nationality Indian, residing at Natural Heights, Phase- 02, Flat No.-6B, Block-2,,137, V.I.P. Road, Kolkata-700052, hereinafter called the "LICENSOR" (which Expression shall unless repugnant to the context or meaning there of the deemed to mean and include its heirs, executors ,administrator and assigns) here in after referred to as **FIRST PARTY**.

AND

SMT.SRABONI BOSE (Aadhar No – 3701 15616821), And **SATYAJIT BOSE** (Aadhar No- 8873 6324 9286) C/O. Santosh Bose, residing at Usha Apartment, Rajarhat road, Near Joramandir, Baguiati, District- North 24 Pgs. Kolkata-700059, hereinafter referred to and called the "LICENSEE" (Which expression shall unless repugnant to the context or meaning there of the deemed to mean and include her heirs, executors, administrator and assign) of the **SECOND PARTY**.

And Whereas **SMT.SRABONI BOSE** approached to the Licensor for granting use of residential accommodation in respect of the said FLAT measuring about 900 (semi furnished flat) Sq.Ft super built up area at **3rd floor of RAJARHAT JUNCTION, FLAT NO- G, BLOCK-02, RAJARHAT RECKJOANI MORE, KANJIALPARA, IN THE DISTRICT OF NORTH 24 PARGANAS, KOLKATA-700135**, for her use and has requested to the Licensor to allow her to use and enjoy the said residential Flat exclusively during occupation of the said accommodation as Licensee with effect from **1ST day of DECEMBER 2025** for a period of 11 months. The Licensee has agreed to pay **Rs.13000/-per month (Rupees Thirteen Thousand only)** as License including maintenance and car parking being reasonable the licensor agreed to the Licensee to use the said residential accommodation.

And whereas the Licensee, who is in need of the residential space offered to acquire the said facilities for her exclusive right to use this with the terms and condition were mutually finalized between the parties.

The parties, therefore, have decided to write the following agreed terms and conditions.

NOW THIS AGREEMENT WITNESSETH AS UNDER: -

1. This agreement shall never be treated or termed as Tenancy Agreement or Rental Agreement or Lease Agreement and the licensee shall use the said premises only for residential purposes.

2. The Licensor will allow and provide the following facilities described in the Schedule A here under given the user for his exclusive use and enjoyment during and collateral to the user and occupation of the said residential Space as amenities including maintenance & Car parking .

3. The validity of this Leave & License agreement will be for 11 months commencing w.e.f. **1st day of December, 2025 and will expire on 31st day of October, 2026** and shall be renewable simultaneously with the leave and license agreement for further term at the option of the Licensor with an increase of 05% in license fees during the subsistence of this service agreement.

4. The Licensee agrees to pay a total sum of **₹26,000/- (Rupees Twenty Six Thousand Only)** to the Licensor at the time of execution of this agreement, out of which ₹13,000/-(Thirteen Thousand Only) shall be held by the Licensor as Security Deposit without any interest. Upon the expiration or lawful termination of this Agreement and subject to the Licensee handing over peaceful and vacant possession of the licensed premises, the Licensor shall refund the Security Deposit amount of ₹13,000/- to the Licensee, after adjusting any dues or damages, if applicable.

5. The Licensee shall pay to the licensor the license fees for allowing him to use the said residential premises exclusively for **Rs.13,000.00/- (Rupees Thirteen Thousand Only)** per month in advance, within the **07th day** of each running month, for the said residential premises.

6. The above license fees will be payable strictly by Licensee to the Licensor on or before the 07th day of every calendar month punctually & regularly and without delay or default in the same month. However, these facilities shall be incidental to the occupation of the said house by the Licensee on leave and license basis and not devoid of it. The licensee shall not cause any delay or default in making this payment of monthly License fees and breach of this condition or any other condition of the licensor, this agreement will be entitled to terminate this agreement.

7. That the Licensee shall keep and maintain the said premises with all fittings in good working condition. Any damage caused by the Licensee, individually or collectively, will be made good by the Licensee forthwith. The licensee shall not be held responsible for any damage by the act of God.

8. That day to day minor repair and proper maintenance of the premises will be carried out by the Licensee.

9. The Licenser shall deduct required charges (if any) from the security deposit, in case of any damage to the said property or its fixtures and fittings.

10. The Licensee hereby agree to deliver up the said premises on the termination of determination of these presents together with all licensors fixtures, fitting in good sure and conditions.

11. The Licensee further hereby agrees to observe and perform all the Bye-Laws, Rules and Regulations of the said Society, and not to do anything as also not to cause any nuisance to the Society or its members or residents of the said buildings.

12. The Licensee shall maintain appropriate conduct and shall not engage in any act of moral turpitude or behavior that causes disturbance to other residents or violates the rules and decorum of the society. Any serious deviation or misconduct, if duly verified and established by the management, security, or authorized representatives of the society through a proper and formal process, may render the Licensee liable for immediate eviction within 24 hours. However, such action shall not be taken solely on the basis of informal complaints or personal observations by individual residents, and shall only be initiated following appropriate verification and due process by the society or its management/security authorities.

13. That The Licenser, being the lawful owner of the licensed premises, hereby assures and undertakes to fully support the Licensee in the peaceful and uninterrupted use and enjoyment of the said premises during the term of this Agreement. The Licenser shall ensure that the Licensee is not disturbed or obstructed in any manner and shall be responsible for maintaining the Licensee's lawful and undisturbed possession of the premises throughout the license period.

14. The Licensee further hereby agrees not to do or permit to be done upon the said premise anything, which in the opinion of the Licenser may be or become or grow to be nuisance or annoyance to neighbors & society.

15. The Licensee agrees, not to store in the said premises any goods, which are hazardous, combustible or considered objectionable by the authorities or dangerous or so heavy as to affect the structure of the building.

16. The Licensee shall not use the premises for any illegal or immoral act. The premises shall not be used by the Licensee for any other Business, Office or any Commercial purpose.

17. That the Licensee shall strictly observe the aforesaid terms and conditions and If the Licensee shall violate and/or not comply with any of the terms and conditions as mentioned herein above shall be liable to eviction. The Licensor and/or Licensee may terminate this agreement by giving one-months (1 month) prior notice in writing before the said period if so required.

18. The Licensee will not claim any type of right such as easement right etc.

19. That the Licensee will not claim , any electrical connection, Electricity board connection in the name of Licensor in the said residential premises or any other facilities other than those detailed in the schedule here under given. The Licensee has seen and satisfied him as regard the working condition and good state of the facilities service provided to him by the owner/Licensor.

20. The Licensee shall not create any charge, encumbrance or lien on the said facilities and shall not deliver the possession to others or assign himself. Right to use/enjoy or create any third party interest in respect of the said facilities or any of them during the subsistence of this agreement.

21. It is expressly agreed between the parties that visits or temporary stays by the Licensee's blood-related family members, personal guests, or maid servants shall be permitted and shall not be construed as subletting or a violation of the terms of this Agreement. Such visits or stays shall be occasional and for personal purposes only, and the Licensee shall remain fully responsible for the conduct and behavior of such individuals during their presence on the licensed premises.

22. On the expiry or earlier termination of this agreement the Licensee shall hand over the vacant and peaceful possession of the said apartment/facilities/service granted to him back to the Licensor in its original good state and condition.

23. The Licensee shall himself at his own cost reinstate other facility if required by him with the written previous permission of the Licensor.

24. The Licensee shall be responsible for routine wear and tear and minor servicing or maintenance required during the term of this Agreement. In the event of any concerns or disputes relating to maintenance or repairs, both parties agree to address and resolve the matter amicably through mutual discussion and understanding

25. The Licensee further hereby agrees not to make erect partitions or any structural additions or alterations in the said premises

26. Nothing herein contained shall create or shall be construed to create any tenancy or sub tenancy or to confer upon the Licensee any right, title or interest in the said premises or any part thereof and the said premises shall continue and shall be deemed to continue and remain in the possession of the Licensor.

27. For further clarifications it is expressly agreed and understood by and between the parties hereto that the Licensee shall use the said premises only on the basis of leave and license of the Licensor and the Licensee shall not at any time claim any right title or interest in the said premises or any part thereof either as a tenant, sub-tenant or otherwise in as much as the Parties hereof have no intention whatever to create any tenancy or sub-tenancy in favor of the Licensee.

28. Any disputes in this agreement are subject to Kolkata, West Bengal jurisdiction only and shall be governed by Indian Contract Act, 1872.

29. The Licensee shall pay the Water, Electricity or any other according to reading of the meter.

30. This agreement is prepared on a stamp paper of Rs.10/- bearing The original agreement copy will remain with the LICENSOR and the duplicate copy will remain with the LICENSEE.

31. Either party can terminate this agreement by giving 1 (One) month notice in writing, after six months from the date of this agreement.

32. The Licensor or their authorized agents shall have the right to enter the licensed premises only for valid reasons such as inspection, maintenance, or repair. Such entry shall be made during reasonable hours and strictly with a minimum of two (2) days' prior notice to the Licensee. The Licensor agrees to respect the privacy of the Licensee, and any entry without prior notice or without a justified reason shall not be permitted, except in cases of emergency.

33. That It is hereby agreed that the Licensee shall not terminate this Leave and License Agreement for a minimum lock-in period of six (6) months from the date of commencement. Similarly, the Licensor shall not evict the Licensee during the said lock-in period, except in the event of a serious breach of the terms and conditions of this agreement by the Licensee. However, the Licensee may choose to vacate the licensed premises within the lock-in period in case of material discomfort, harassment, or disruption caused by the Licensor or arising from circumstances beyond the Licensee's control. Such early termination by the Licensee shall be subject to prior written notice and mutual discussion, with both parties acting in good faith to resolve the matter amicably.

34. Both the Licensor and the Licensee agree that in the event any unforeseen concerns, disputes, or issues arise during the term of this Agreement, the same shall be addressed and resolved amicably through mutual discussion, good faith negotiations, and cooperation between both parties. It is the intent of both parties to maintain a harmonious and transparent relationship, and to resolve any such matters without resorting to litigation, unless absolutely necessary.

35. The Licensee shall be provided a grace period of 2 to 3 days, if required, for vacating the said premises upon the expiry or termination of this Agreement. This grace period is intended to facilitate a smooth and orderly handover of possession and shall not be construed as an extension of the license term. During this period, the Licensee shall not cause any damage to the premises and shall remain bound by all terms and conditions of this Agreement.

DESCRIPTION OF THE PROPERTY – SCHEDULE A

ALL THAT PIECE AND PARCEL OF ONE FLAT measuring about 900(semi furnished flat)
Sq.Ft super built up area at **3rd floor of RAJARHAT JUNCTION, FLAT NO- G,BLOCK-02,**
RAJARHAT RECKJOANI MORE,KANJIALPARA, IN THE DISTRICT OF NORTH 24
PARGANAS, KOLKATA-700135.

Including-

1. One covered Parking.(Parking No.3)
2. Two rooms.
3. Two toilets.
4. One balcony
5. Six Tubelights
6. Three exhaust fan
7. Three ceiling fan.

In witness whereof the parties hereto have signed this agreement on the 1st day of DECEMBER, 2025 herein above mention in the presence of the undersigned witness-

Signature of the Licensor.

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AJIT KUMAR PATEL

Email.id.

Mob.

WITNESS

Signature of the Licensees.

1.

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SRABONI BOSE / SATYAJIT BOSE

Email id.

2.

Mob.

IDENTIFIED BY ME

SUMAN BOSE(ADVOCATE)